

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC

RESPONDENT.

**COMPLAINANT PELOTON INTERACTIVE, INC.’S
OPPOSITION TO FLEXPORT INTERNATIONAL LLC’S
MOTION FOR EXTENSION OF THE SCHEDULING ORDER**

INTRODUCTION

Peloton Interactive, Inc. (“Peloton”) opposes this extension request and expedites the submission of its position to address factually incorrect statements and so that the Presiding Officer can address the schedule uncertainty that is now raised by the filing this afternoon. Peloton’s merits filings, including the Appendix, were fully accessible to Flexport International LLC’s (“Flexport’s”) counsel on August 14. If Flexport’s counsel requested an additional three days in order to have another weekend to work on its papers, as a professional courtesy Peloton would have agreed, subject to an equal amount of time afforded for the reply. Instead, Flexport counsel raised contrived security concerns when downloading the timely-filed Appendix and threatened to

file a motion to strike the filing.¹ Peloton then undertook additional efforts and expense to successfully hand-deliver the filing to Flexport counsel on August 15. Accordingly, Flexport's request does not meet the good cause standard for an extension, and Peloton opposes the motion. In the event that the Presiding Officer grants Flexport's extension request, however, Peloton respectfully requests that its reply deadline be extended to October 2, 2025.

FACTUAL BACKGROUND

On August 14, 2025, Peloton, through its counsel, served the following documents in support of its claims against Flexport: (1) Peloton's Confidential Brief in Support of Its Claims, (2) Proposed Findings of Fact (PDF and Word versions), (3) Peloton's Sixth Motion for Confidential Treatment, and (4) Exhibit A to the Motion for Confidential Treatment. Due to the size of the Appendix—exceeding 14 GB (and over 10,000 pages)—Peloton provided access via a secure OneDrive link, as transmitting such a large file by email was not feasible.² This method of service is consistent with FMC practice where secure digital platforms are frequently used to transmit large files.³ Moreover, the use of digital links for large files is both reasonable and

¹ To address Flexport's concern, Peloton arranged for the 10,000-page Appendix to be transferred onto a USB drive and hand-delivered it to Flexport's office on August 15, 2025.

² Flexport's motion asserts that Peloton has only produced redacted versions of its documents. This is inaccurate. The appendix filed on August 14, 2025 includes unredacted versions of Peloton's materials, including production documents, deposition transcripts, and deposition exhibits. Flexport may be referring to Appendix A, which contains publicly available filings that were produced in the same form in which they are published in the FMC's Reading Room and may include redactions. In accordance with the Federal Maritime Commission's rules governing confidential submissions—which require that a public version be filed within three business days—Peloton has filed the public version of its appendix on August 19, 2025 and arranged for courier delivery of the USB to Flexport counsel. 46 CFR § 502.5(a)(2)(ii).

³ See also 46 CFR § 502.2 Filing of documents; see also www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf (“The Commission waives 46 C.F.R. § 502.2(f)(1),(2). Filing via email of the documents subject to these rules is sufficient”).

necessary given technical constraints, and has been accepted by Flexport and Peloton in prior instances in this proceeding.

Peloton's counsel confirmed that the OneDrive link was functional for external users, and the FMC's office of the Secretary confirmed by phone on August 15 that it was able to access and download the documents. On August 15, however, counsel for Flexport notified Peloton's counsel by email that they would not use the secure link provided to access the Appendix. Instead, he repeatedly threatened to move to strike the Appendix on the grounds of non-receipt.⁴ *See* Exhibit 1, Email from Flexport Counsel to Peloton Counsel ("So there is no confusion, this is what appears when you log in. Note the statement 'You should only accept if you trust Holland & Knight, LLP'. Obviously no one in their right mind would. Please confirm whether you will agree to strike the appendix. Thanks!").

In response, Peloton offered alternative delivery options, including uploading to Flexport's own file transfer protocol ("FTP") site or providing hard copy⁵ delivery to Flexport counsel's office, to ensure Flexport's access to the materials and alleviate any purported security concerns. On August 15, at 10:42 AM, Flexport then shifted its position and demanded that Peloton agree to a three-day extension of Flexport's response deadline instead and requested the Appendix be put on a USB drive and delivered to his office. At 10:54 A.M., Peloton's counsel instructed its Office Services Department to transfer the Appendix to a USB drive. Given the substantial file size, the process was not completed until later that day. Once the transfer was finished, Peloton promptly

⁴ Peloton also notes that, aside from a small number of documents (e.g., attorney declaration), the materials included in the Appendix largely consist of items already part of the record—such as production documents, deposition transcripts, and the expert report—which were previously available to Flexport.

⁵ Peloton counsel offered to provide hard copy documents to address Flexport's contention that it did not want to access a H&K portal and its purported security concerns, which Flexport rejected. Flexport also rejected Peloton's proposal to upload the Appendix to Flexport's own FTP.

hand-delivered the USB via courier directly to Flexport counsel's office, where it was received the same day.⁶ Additionally, Peloton provided contact details for its eDiscovery team to ensure Flexport's counsel could ask any technical questions related to accessing the Appendix.

ARGUMENT

The November 8, 2024, Scheduling Order states that a “motion which sets forth good cause to extend the schedule ... will be considered if the parties are unable to meet the deadlines above.”⁷ Here, Flexport has failed to establish good cause for extension. Flexport received Peloton's Initial Brief and Proposed Findings of Fact on August 14. The sole basis for its request is counsel's refusal to access the timely-served Appendix due to his purported distrust of the secure site used by Peloton's counsel.

The OneDrive platform is a widely recognized, secure document-sharing service, routinely used in legal proceedings for the transmission of large files. The security protocols require users to verify their identity through email authentication (to match a list provided of email addresses that could properly access the data), ensuring that only authorized recipients can access the documents. Peloton's use of OneDrive for document service is both reasonable and consistent with

⁶ See attached photo from the courier confirming delivery to Flexport's Counsel's Office on August 15, 2025. The package was subsequently placed in the mail door slot and Peloton notified Flexport counsel of delivery, including providing the attached photo.



⁷ Dkt. No. 19 at p. 4.

prior practice in FMC proceedings, where large files have routinely been exchanged via secure digital platforms. The FMC itself successfully accessed the Appendix using the same link, and Flexport counsel has previously utilized similar methods in this matter to transmit documents. Flexport's counsel thus had timely access to the Appendix in OneDrive—he simply chose not to access it. Peloton nonetheless undertook additional effort and expense to personally deliver the filing in an additional format the next day.

The standard for granting an extension of time requires a showing of good cause, typically based on circumstances outside the movant's control, diligent efforts to comply with deadlines, and a lack of prejudice to the opposing party. The FMC has denied motions to extend scheduling deadlines where parties failed to demonstrate good cause. *See Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.*, Dkt. No.23-10, 2024 WL 4563533 (ALJ Oct. 17, 2024); *Philip Reinisch Co. LLC, v. Flexport International LLC*, Dkt. No. 22-26, 2022 WL 17592345, at *1 (ALJ Dec. 5, 2022).

Granting an extension under these circumstances would reward gamesmanship and undermine the efficient administration of this matter. Peloton has fully complied with all service requirements, and in fact made extra efforts to ensure Flexport's timely access to the Appendix. Flexport's refusal to utilize reasonable delivery methods does not constitute a valid basis for an extension. Peloton intends to seek the additional costs associated with these extra efforts, as well as Flexport's unnecessary motion practice, following the issuance of the Initial Decision.

CONCLUSION

For the foregoing reasons, Peloton respectfully requests that the Commission deny Flexport's motion for extension of time. Should the Presiding Officer deem that additional time

may be appropriate, Peloton respectfully requests that an equivalent extension be granted for its reply, such that its response deadline would be adjusted accordingly (i.e., until October 2, 2025).

Respectfully submitted,

Dated: August 19, 2025

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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